

	parties alleged to be liable for the same injury. (<i>TSI Seismic Tenant Space, Inc. v. Superior Court</i> (2007) 149 Cal.App.4th 159, 166.) Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. (<i>Id.</i> at 166-167.) Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (<i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1261.) In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the Tech-Bilt standards. (<i>Ibid.</i>) The total amount of damages claimed is not the only criterion. Also relevant is the likelihood that the settling defendant might prevail against a plaintiff’s claims. By definition, determination of a “ballpark” amount includes consideration of the possibility that the plaintiff will not prevail – that is, it is a determination of what a reasonable person could believe the plaintiff would recover at trial. (<i>Cahill v. San Diego Gas & Elec. Co.</i> (2011) 194 Cal.App.4th 939, 964-965.) In <i>Cahill v. San Diego Gas & Elec. Co.</i> (2011) 194 Cal.App.4th 939, 967-968, the court disregarded the plaintiff’s likely recovery of \$5 million and
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